

the motion fails to indicate any overage with specificity. For that reason, the Court would not tax these costs.

- (3) Item 5 – Service of Process of \$4,562: Here, Defendant asserts correctly that no third-party witnesses were called, and Plaintiff has not substantiated any sums for service of process. However, Defendant admits that some service was necessary at the onset of the case. The Court would tax costs and allow half, or allow \$2,281.
- (4) Item 13 – Models, Enlargements & Photocopies of \$86,943.75: Defendant correctly indicates that a nearly six-figure cost for a 7-day trial is excessive. As Defendant asserts (without opposition), “Plaintiff did not use any models or enlargements at trial.” (Mtn., 8:20-21.) However, there was a trial technician, and there were various photographs and exhibits used throughout the trial. As there is no opposition to dispute this characterization, the Court would tax costs and allow half, or allow \$43,471.88.
- (5) Item 15 – Other at \$4,150. As Defendant asserts, “Plaintiff provides no information or substantiating documentation to determine what specific costs are being sought under this Item” (Mtn., 9:3-4.) Again, as no opposition is provided, the Court would strike this cost.

13. *Onemain Financial Group, LLC, v Gonzalez Castellanos*, Case No. CIVSB2419610
Plaintiff’s Motion for Judgment on the Pleadings
9/2/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

A party may bring a motion for judgment on the pleadings (JOP) after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.)

Here, Plaintiff submitted a declaration confirming satisfaction of the meet-and-confer requirement. (See Reese Decl., ¶¶9-11.) Thus, the Court reaches the merits of the motion:

The Court takes judicial notice of the Defendant’s Answer, filed on April 3, 2026, as well as the Court’s March 12, 2026, order deeming Plaintiff’s requests for admission as admitted. (See Order Granting Plaintiff’s Motion to Deem Request for Admissions Admitted, signed March 12, 2026.) Here, saliently, the admissions are in direct conflict with the answer’s general denial. More specifically, the admissions establish the cause of action. The JOP, therefore, appears appropriate.
